

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
EUDY JOSE TORRES,

Plaintiff

-against-

CITY OF NEW YORK, POLICE OFFICER
DWIGHT POWELL, SHIELD # 9038,
POLICE OFFICER CHRISTINA BRIONES, Shield 18246

Defendants

-----X

Index No.

PURCHASED 3-23-15

Plaintiff designates
New York County as the place
of trial

The basis of the venue is where
the tort arose

Plaintiff resides in
New York, New York

SUMMONS

TO THE ABOVE NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED, to answer the complaint in this section and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney (s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, New York
March 23, 2015



LAW OFFICE OF ELLIOT S. KAY, ESQ.
Attorney for Plaintiff
888 Grand Concourse, Suite 1H
Bronx, NY 10451
212-939-7251

Defendants' Addresses:
**CORPORATION COUNSEL OF THE CITY OF
NEW YORK**
100 Church Street
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
EUDY JOSE TORRES,

Plaintiff

-against-

CITY OF NEW YORK, POLICE OFFICER
DWIGHT POWELL, SHIELD # 9038,
POLICE OFFICER CHRISTINA BRIONES, Shield 18246

Index No.

Purchased 3-23-15

VERIFIED COMPLAINT

-----X

EUDY JOSE TORRES, by his attorney, ELLIOT S. KAY, respectfully alleges as follows:

PARTIES

1. At all times mentioned, Plaintiff EUDY JOSE TORRES was a resident of New York County, City and State of New York.
2. At all times mentioned, Defendant CITY OF NEW YORK ("CITY"), was and is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.
3. At all times mentioned, THE NEW YORK CITY POLICE DEPARTMENT ("POLICE"), was and is an agency of defendant CITY.
4. At all times mentioned, Defendant POLICE OFFICER DWIGHT POWELL, SHIELD # 9038, hereinafter referred to as ("P.O. POWELL") was and is a police officer employed by POLICE, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY and POLICE.
5. At all times mentioned, Defendant POLICE OFFICER CHRISTINA BRIONES, Shield 18246, hereinafter referred to as ("P.O. BRIONES") was and is a police officer employed

by POLICE, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY and POLICE.

BACKGROUND

6. On or about November 28, 2012, at approximately 3:45 p.m., inside of 539 West 162nd Street in New York County, P.O. POWELL stopped Plaintiff as Plaintiff attempted to visit Plaintiff's girlfriend, who resided in the aforementioned building.
7. After stopping Plaintiff, P.O. POWELL interrogated Plaintiff about Plaintiff's purpose for being in the building. In response, Plaintiff explained that he was visiting his girlfriend and that she lived in the building.
8. Next, Plaintiff exited the building. While Plaintiff was approximately 100 feet from 539 West 162nd Street, multiple police officers, including P.O. BRIONES approached Plaintiff. These police officers, including P.O. BRIONES, violently slammed Plaintiff to the ground and handcuffed Plaintiff.
9. Defendants, including P.O. BRIONES, intentionally placed Plaintiff under arrest without just cause or provocation and with reckless and negligent disregard for the truth.
10. On or about November 28, 2012, a criminal complaint was issued at the directive of Defendants, and a criminal action against Plaintiff was commenced.
11. Plaintiff was released from custody on or about December 6, 2012.
12. All charges against Plaintiff were dismissed, upon information and belief, on February 13, 2014.
13. As a result of the treatment of Plaintiff by the Defendants, Plaintiff was denied liberty by being falsely arrested and imprisoned.
14. Plaintiff suffered emotional injuries due to the conduct of the Defendants. Defendants caused Plaintiff to be humiliated, to fear for his safety, and to suffer from other emotional distress.

15. Plaintiff had to defend against false charges until all charges were dismissed on February 13, 2014.

PROCEDURAL POSTURE

16. On or about the 20th day of March, 2014, and within ninety (90) days after the claim of malicious prosecution arose, Plaintiff served a Notice of Claim in writing sworn to on his behalf upon the Defendant CITY, by delivering a copy thereof in duplicate to the officer designated to receive such process personally, which Notice of Claim advised the Defendant CITY, of the nature, place, time and manner in which the claim arose, the items of damage and injuries sustained so far as was then determinable.
17. At least thirty (30) days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused.
18. A 50-H hearing has been held.
19. This action has been commenced within one year and ninety days after the causes of action accrued.
20. Plaintiff has duly complied with all conditions precedent to the commencement of this Action.

FIRST CAUSE OF ACTION: MALICIOUS PROSECUTION

21. Paragraphs 1-20 are incorporated by reference as though fully set forth herein.
22. Upon information and belief, on or about November 28, 2012, and from that time until the dismissal of charges on or about February 13, 2014 by the Honorable Judge presiding at New York Criminal Court, Defendants deliberately and maliciously prosecuted Plaintiff, an innocent person without any probable cause whatsoever, by filing or causing a misdemeanor complaint to be filed in the Criminal Court of the City of New York, New

York County, for the purpose of falsely accusing Plaintiff of violations of the criminal laws of the State of New York.

23. The Defendants, their agents, servants or employees failed to take reasonable steps to stop the prosecution of the Plaintiff and instead maliciously and deliberately provided false and/or incomplete information to the District Attorney's office to induce prosecution of the Plaintiff.
24. The commencement of these criminal proceedings was malicious and began in malice and without probable cause, so that the proceedings could succeed by the Defendants.
25. As a result of the malicious prosecution, Plaintiff was deprived of his liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution.

SECOND CAUSE OF ACTION: SECTION 1983

26. Paragraphs 1-25 are incorporated by reference as though fully set forth herein.
27. P.O. BRIONES was at all times relevant, duly appointed and acting as a police officer with NEW YORK CITY POLICE DEPARTMENT.
28. At all times mentioned herein, P.O. BRIONES was acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.
29. Plaintiff is and at all times relevant herein, a citizen of the United States and a resident of New York County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.
30. Defendant CITY OF NEW YORK is a municipality duly incorporated under the laws of the State of New York.
31. On November 28, 2012 at approximately 3:45 p.m., in the vicinity of 539 West 162nd Street in New York County, P.O. BRIONES, while effectuating the seizure of Plaintiff,

did search, seize and grab the person of Plaintiff without a court authorized arrest or search warrant. Defendants, including P.O. BRIONES, did physically seize the person of Plaintiff during the arrest process in an unlawful and excessive manner. Plaintiff was falsely arrested. Defendants, including P.O. BRIONES, did not possess probable cause to arrest Plaintiff.

32. The above action of the Defendants resulted in Plaintiff being deprived of the following rights under the United States Constitution:

- a. Freedom from assault to his person;
- b. Freedom from battery to his person;
- c. Freedom from illegal search and seizure;
- d. Freedom from false arrest;
- e. Freedom from the use of excessive force during the arrest process.

33. The Defendants subjected Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights under the fourth and fourteenth amendments of the United States Constitution.

34. The direct and proximate result of the Defendants' acts is that Plaintiff has suffered injuries of a psychological nature. Plaintiff was forced to endure pain, humiliation and suffering, all to his detriment.

WHEREFORE, the Plaintiff EUDY JOSE TORRES demands judgment against the defendants on the First Cause of Action and the Second Cause of Action in a sum that exceeds the jurisdictional limits of all lower trial courts

Dated: Bronx, New York
March 23, 2015

Yours, etc.



LAW OFFICE OF ELLIOT S. KAY, ESQ.

BY: ELLIOT S. KAY

Attorney for Plaintiff

888 Grand Concourse, Suite 1H

Bronx, New York 10451

(212) 939-7251

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
EUDY JOSE TORRES,

Plaintiff

Index No.

Purchased: 3-23-15

-against-

CITY OF NEW YORK, POLICE OFFICER
DWIGHT POWELL, SHIELD # 9038,
POLICE OFFICER CHRISTINA BRIONES, Shield 18246

Verification

Defendants
-----X

I, **ELLIOT S. KAY**, an attorney admitted to practice in the courts of New York State, state that I am the attorney of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not the Plaintiff is because Plaintiff resides outside the county where deponent maintains his office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bronx, New York
March 23, 2015


ELLIOT S. KAY